

Prasant Kumar Gupta v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 1 April 2024 · 2024:AHC:54938-DB · Writ-C No. 6938 of 2024
· **Recovery withdrawn; writ disposed for a fresh order after prescribed procedure.**

HEADNOTE

The Division Bench found that the notice of provisional assessment fixed no date of hearing, contrary to clause 6.8 of the U.P. Electricity Supply Code, 2005, and that the final assessment recorded that no objection was received although the petitioner had objected that no inspection took place. On counsel's statement that the recovery certificate dated 17 November 2023 stood withdrawn and that a fresh order would follow the prescribed procedure, the writ was disposed of.

FACTUAL SUMMARY

Prasant Kumar Gupta challenged assessment proceedings said to have been taken under section 126 of the Electricity Act, 2003, and the recovery certificate dated 17 November 2023. The electricity department had issued a provisional-assessment notice dated 19 December 2021. He applied on 5 October 2021 and objected on 12 January 2023, both times stating that no inspection was carried out at his premises. The final assessment recorded that no objection had been received. Before the Division Bench the department stated that the impugned recovery had been withdrawn.

REUSABLE CONSTRUCTIONS

1. A notice of provisional assessment that fixes no date of hearing is contrary to clause 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Hearing date in provisional assessment notice

HOLDING

In the order dated 20 March 2024 the Court held that the notice of provisional assessment, issued in a proceeding purportedly under section 126 of the Electricity Act, 2003, fixed no date of hearing and was therefore contrary to clause 6.8 of the U.P. Electricity Supply Code, 2005. The final assessment had also recorded that no objection was received, although the petitioner had objected that no inspection was carried out. On 1 April 2024 the writ was disposed of on the licensee's statement that the recovery certificate dated 17 November 2023 stood withdrawn and that a fresh order would be passed after the prescribed procedure. ¶ 2

PRINCIPLE TAGS

6.8-procedure-mandatory The provisional-assessment notice fixed no date of hearing. The Court treated that omission as contrary to clause 6.8, and the writ ended on the licensee's statement that the recovery was withdrawn and a fresh order would follow the prescribed procedure. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE SECTION 126 ASSESSMENT

The order dated 1 April 2024 did not adjudicate the assessment. It disposed of the writ on the statement that the recovery stood withdrawn and that a fresh order would follow the prescribed procedure. ¶ 2-3

NOT DECIDED — WHETHER THE INSPECTION WAS HELD IN THE PETITIONER'S PRESENCE AND WHETHER THE INSPECTION REPORT BORE HIS OR HIS REPRESENTATIVE'S SIGNATURES

The order dated 20 March 2024 directed the Managing Director of the Discom to examine how the Executive Engineer passed the final assessment. The disposing order does not record the result of that examination. ¶ 4

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.